

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RANDI LASS, and PATRICK REYES, individually,
and as spouse of RANDI LASS,

Index No.:

plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT; OFFICERS
THOMAS CHAN, ANTHONY BIAGINI, individually
and in their official capacities as New York City
Police Officers, NEW YORK CITY DEPARTMENT
OF PARKS and RECREATION, PROSPECT PARK
ALLIANCE, and NIKE, INC.,

defendants.

VERIFIED
COMPLAINT

-----X
Plaintiffs Randi Lass and Patrick Reyes individually, and as spouse of Randi Lass,
by and through their attorneys, THE DEVEREAUX LAW GROUP, d/b/a Michael J. Devereaux
& Associates, P.C., with offices at 39 Broadway, Suite 910, New York, New York, 10006,
hereby avers:

1. At all times hereinafter mentioned, defendant the City of New York (hereinafter referred to as "the City"), upon information and belief, is a municipal corporation duly organized and existing pursuant to the laws of the State of New York.

2. At all times hereinafter mentioned, upon information and belief, the City maintains a police department known as the New York City Police Department (hereinafter referred to as the "NYPD").

3. At all times hereinafter mentioned, upon information and belief, Officer Chan was and remains employed by the NYPD and is responsible for arresting criminal suspects.

4. At all times hereinafter mentioned, upon information and belief, Officer Biagini was and remains employed by the NYPD and is responsible for arresting criminal suspects.

5. At all times hereinafter mentioned, upon information and belief, the City operates the New York City Department of Parks and Recreation (hereinafter referred to as "New York City Parks).

6. At all times hereinafter mentioned, upon information and belief, Prospect Park Alliance was and remains a non-profit organization existing pursuant to the laws of the State of New York.

7. At all times hereinafter mentioned, the plaintiff Randi Lass resides at 651 Vanderbilt Street, Apt 5M, Brooklyn, NY, 11218.

8. At all times hereinafter mentioned, the plaintiff Patrick Reyes resides at 651 Vanderbilt Street, Apt 5M, Brooklyn, NY, 11218.

9. At all times hereinafter mentioned, the plaintiff Patrick Reyes was and is the spouse of the plaintiff Randi Lass.

10. Prior to the commencement of this action, and on August 17, 2015, the plaintiffs duly filed with the City and NYPD verified Notices of Claim setting forth the occurrence giving rise to the instant action which were duly filed within ninety (90) days of the occurrence and/or accrual of the causes of action.

11. More than thirty (30) days have elapsed since presentation of said claims, and defendants have not adjusted the same and have failed and neglected to make any payment of such claim and cause of action.

12. This action is commenced within one (1) year and ninety (90) days after the date of the occurrence and/or accrual of the causes of action.

13. On the morning of July 11, 2015, at approximately 9:30AM, plaintiff Randi Lass was lawfully in Prospect Park, Brooklyn, New York, walking with her dog.

14. On the morning of July 11, 2015, in the same area of Prospect Park, a 5K run occurred, upon information and belief, an event sponsored by Nike Inc.

15. The City, upon information and belief, approved and sanctioned the 5K run event.

16. New York City Parks, upon information and belief, approved and sanctioned the 5K run event.

17. Prospect Park Alliance, upon information and belief, approved and sanctioned the 5K run event.

18. The City, upon information and belief, was responsible for providing security for the 5K event.

19. The NYPD, upon information and belief, was responsible for providing security for the event.

20. New York City Parks, upon information and belief, was responsible for providing security for both Prospect Park and the 5K event.

21. Prospect Park Alliance, upon information and belief, was responsible for providing security for the 5K event.

22. The City, upon information and belief, was responsible for providing security for the general public spectating the 5K event.

23. The NYPD, upon information and belief, was responsible for providing security for the general public spectating the 5K event.

24. New York City Parks, upon information and belief, was responsible for providing security for the general public spectating the 5K event.

25. Prospect Park Alliance was, upon information and belief, responsible for providing security for the general public spectating the 5K event.

26. Plaintiff Randi Lass was walking in the area where the 5K event was being held, near the security tent.

27. Plaintiff Randi Lass's dog was attacked by a dog owned by a race participant.

28. Plaintiff Randi Lass was speaking with a 5K event security guard at the very moment the attack happened.

29. The 5K event security guard failed to act to address and/or to assist plaintiff in regards to, and relating to, the attack.

30. A few feet from the security tent, plaintiff Randi Lass was personally assaulted by an African-American gentlemen (the "assailant".)

31. Upon information and belief, the assailant was a registered participant in the 5K run event.

32. The defendants who failed to protect the plaintiff from assailant, upon information and belief, were and/or are a members of the NYPD.

33. Upon the plaintiff Randi Lass pointing out and identifying the assailant, NYPD Patrol Officers failed to arrest or even gather identifying information of the assailant.

34. Leaving the venue to seek medical treatment, plaintiff Randi Lass was able to locate and identify the assailant while he was participating in the event.

35. Upon locating and identifying the assailant a second time, plaintiff Randi Lass called 911 to report the assailant's location

36. NYPD Patrol Officers responded to plaintiff Randi Lass's location where she identified assailant a second time.

37. Upon responding to plaintiff Randi Lass's location, NYPD Patrol Officer, Thomas Chan threatened to arrest plaintiff Randi Lass if she continued to call 911.

38. Plaintiff, upon information and belief, was in physical danger from the assailant.

39. The assailant yelled at plaintiff Randi Lass, saying she "did not belong" there and her "dog did not belong" there

40. The assailant then, without warning, punched plaintiff Randi Lass in the face.

41. The assailant punched plaintiff Randi Lass without justification.

42. The assailant punched plaintiff Randi Lass without any provocation.

43. The plaintiff Randi Lass never punched or otherwise physically touched the assailant.

44. As a result of the injury, plaintiff Randi Lass suffered severe pain and numbness, as well as permanent injuries, including general difficulty moving her mouth, including temporomandibular joint dysfunction.

45. Plaintiff Randi Lass still suffers severe pain and numbness, as well as permanent injuries, including general difficulty moving her mouth, and temporomandibular joint dysfunction.

46. The assault also caused other injuries, bleeding, etc., including abrasions and at least one very loose tooth.

47. As a result of the assault, plaintiff Randi Lass also had to seek mental health treatment due to the trauma of the assailant's assault.

48. Plaintiff Randi Lass's relationship with her husband, plaintiff Patrick Reyes, including intimate relationship, deteriorated for months due to the trauma of the assailant's assault.

49. A 5K event security guard was stationed nearby.

50. The 5K event security guard told the plaintiff Randi Lass to call the police but did not otherwise render aid.

51. Upon arrival, approximately fifteen minutes later, and upon the plaintiff Randi Lass pointing out her assailant in the crowd, the NYPD represented that the incident would be “written-up.”

52. Upon arrival, approximately fifteen minutes after calling 911, and upon the plaintiff Randi Lass pointing out her assailant in the crowd, Officer Thomas Chan represented that the incident would be “written-up.”

53. Plaintiff Randi Lass asked Officers Chan and Biagini why the assailant was not arrested.

54. Officer Biagini, at first denied seeing the assailant, but when pressed by plaintiff, Randi Lass, he stated that he did see the assailant but when he turned to plaintiff for confirmation of the assailant’s identity, she was not there.

55. Plaintiff Randi Lass was unavailable to confirm assailant’s identity as she had been removed by other police officers from the area where she could have provided confirmation.

56. Officer Chan responded that his lieutenant said to “take a report for harassment. That’s all I can do.”

57. The NYPD failed to make efforts to arrest the assailant/perpetrator on the scene.

58. Officers Chan and Biagini failed to make efforts to arrest the perpetrator on the scene.

59. The NYPD continued to fail to render aid to injured Randi Lass.

60. The NYPD continued to fail to render aid to the injured plaintiff Randi Lass as it neglected to provide a complaint number or any other type of paperwork allowing for follow-up.

61. The NYPD represented that the incident would be “written-up.”

62. The NYPD’s written report demeaned and further assaulted the plaintiff Randi Lass by falsely concluding that the plaintiff was mentally unstable and had not actually been hit.

63. Plaintiff Randi Lass had partially recorded the immediate aftermath of the assault.

64. Plaintiff Randi Lass showed the video clearly showing the assailant to the NYPD.

65. Plaintiff Randi Lass showed photographs clearly showing the assailant to the NYPD.

66. On July 12, 2015, plaintiff Randi Lass showed the videotape clearly showing the assailant to a detective at the NYPD, 78th precinct.

67. On July 12, 2015, a detective at the NYPD 78th precinct asked for a copy of the video.

68. On July 12, 2015, plaintiff Randi Lass provided a copy of the video to a detective at the NYPD 78th precinct.

69. On July 12, 2015, plaintiff Randi Lass showed photographs clearly showing the assailant to a detective at the NYPD 78th precinct.

70. On July 12, 2015, a detective at the NYPD 78th precinct asked for a copy of the photographs.

71. On July 12, 2015, plaintiff Randi Lass provided a copy of the photographs to a detective at the NYPD 78th precinct

72. On July 12, 2015, a detective at the NYPD 78th precinct represented that a case would be opened and investigated.

73. The NYPD, upon information and belief, did not conduct a proper investigation of the case.

74. Plaintiff Randi Lass attempted to contact New York City Parks and the Prospect Park Alliance.

75. New York City Parks was unresponsive and referred the plaintiff only to the NYPD.

76. The Prospect Park Alliance was unresponsive and referred the plaintiff only to the NYPD.

77. The plaintiff Randi Lass reached out to the city, at the Office of the Brooklyn borough president.

78. The Brooklyn Borough President and his staff made numerous appointments to discuss the matter by phone with plaintiff Randi Lass.

79. The Brooklyn Borough President failed to honor those appointments.

80. The Brooklyn Borough President failed to meet with plaintiff Randi Lass.

81. After numerous attempts to contact the Brooklyn Borough President beginning on July 12, 2015, plaintiffs Randi Lass and Patrick Reyes were finally granted a meeting with Andrew Gounardes, counsel to the Borough President, and Jeffery Lowell, Policy Analyst on August 11, 2015.

82. Plaintiff Randi Lass was subjected to malicious verbal assaults and accusations on Facebook when she attempted to post information about her attack to the Facebook page of the Brooklyn Borough President.

83. The staff of the Brooklyn Borough President ignored plaintiff Randi Lass's posts on Facebook.

84. The staff of the Brooklyn Borough President removed plaintiff Randi Lass's posts on the subject of her assault.

85. The City ignored plaintiff Randi Lass's posts on Facebook.

86. The City removed plaintiff Randi Lass's posts on the subject of her assault.

87. Upon information and belief, a list of registered participants existed for the event ("the list")

88. Upon information and belief, a list of registered participants exists for the event.

89. Upon information and belief, a list of registered participants should not have been destroyed because of the knowledge of the herein pending claims.

90. Upon information and belief, a list of registered participants was not destroyed and is hereby requested to be reserved and disclosed.

91. Upon information and belief, Nike Inc., is in possession, custody, and/or control of the list.

92. Upon information and belief Nike Inc., did not make available the list to the NYPD.

93. Upon information and belief, the NYPD did not request the list.

94. Upon information and belief, the NYPD did not request and/or otherwise investigate based on the list.

95. Upon information and belief, the defendants failed to conduct a proper, logical and sensible investigation.

96. Upon information and belief, a female race participant has been identified in photographs as an associate of and/or related to the assailant.

97. Upon information and belief, the female race participant made defamatory, slanderous comments against plaintiff(s) on the Facebook page of the Brooklyn Borough President.

98. Upon information and belief, NYPD failed to locate and/or question the female race participant in relation to the assault and/or the identity of the assailant.

99. NYPD did not properly interview the witness who falsely stated that no assault occurred.

100. NYPD did not notify plaintiff that they “closed” their investigation and “closed” the case and were taking no further action.

AS AND FOR A FIRST CAUSE OF ACTION

101. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in ¶ “1” through “100” inclusive, with the same force and effect as though the same were fully set forth at length herein.

102. Defendants assumed a duty to provide adequate security for and to protect spectators of the 5K run event.

103. Defendants assumed a duty to protect members of the general public from registered race participants.

104. Defendants breached the duty by failing to provide adequately trained and instructed security personnel.

105. Defendants breached the duty by failing to monitor and supervise the event and staff.

106. Defendants breached the duty by failing to provide adequate security and safety for members of the general public present at the time and location of the 5K run event.

AS AND FOR A SECOND CAUSE OF ACTION

107. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in ¶ “1” through “106” inclusive, with the same force and effect as though the same were fully set forth at length herein.

108. Defendants failed to perform a proper investigation of the facts surrounding the assault.

109. Defendants failed to arrest the perpetrator despite the perpetrator having been seen.

110. Defendants failed to open an investigation into the assault despite explicitly promising to do so.

111. Defendants actively covered up the assault by crediting false and slanderous accusations made against plaintiff Randi Lass.

112. By being utterly unresponsive to plaintiff Randi Lass’s outreach for help after the assault, defendants caused continuing psychological harm to plaintiffs, including but not limited to decline in the plaintiffs’ intimate relationship.

AS AND FOR A THIRD CAUSE OF ACTION

113. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in ¶ “1” through “112” inclusive, with the same force and effect as though the same were fully set forth at length herein.

114. Defendants’ actions and inaction caused psychological harm to plaintiff Randi Lass, including trauma and a loss of security.

115. Defendants' actions and inaction caused a breakdown in the intimate and emotional relationship between plaintiff Randi Lass and her husband.

AS AND FOR A FOURTH CAUSE OF ACTION

116. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in ¶ "1" through "115" inclusive, with the same force and effect as though the same were fully set forth at length herein.

117. Defendants collectively and/or individually caused plaintiff's injuries.

118. Defendants are liable for plaintiff's injuries.

119. Defendants collectively or individually were grossly negligent, intentionally, and/or with deliberate malice caused plaintiff's injuries.

WHEREFORE, plaintiffs demand judgment against defendants for the damages, including but not limited to, loss of consortium, in an amount in excess of the jurisdictional limits of all lower courts in which this action could otherwise have been brought, together with such other and further relief as the Court shall deem just and proper.

Dated: October 24, 2016
New York, New York



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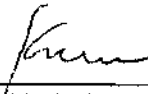
VERIFICATION OF RANDI LASS

Randi Lass, being duly sworn and deposes that the aforementioned pleading entitled verified complaint is true and accurate to the best of my knowledge and as to those matters alleged upon information and belief, I believe them to be true and accurate based upon information and belief.

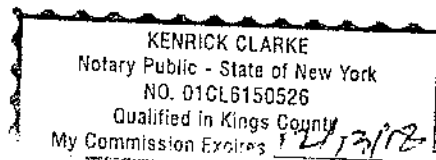


RANDI LASS

Sworn-to before me this
4th day of December, 2016



NOTARY PUBLIC



VERIFICATION OF PATRICK REYES

Patrick Reyes, being duly sworn and deposes that the aforementioned pleading entitled verified complaint is true and accurate to the best of my knowledge and as to those matters alleged upon information and belief, I believe them to be true and accurate based upon information and belief.


PATRICK REYES

Sworn-to before me this
1st day of December, 2016


NOTARY PUBLIC

LORENA R CICALA
Notary Public
State of New Jersey
My Commission Expires Oct. 4, 2017
I.D.# 2425934